

Rights, Directive Principles and Duties

The three obligations of the constitutional order — what the state may not do to the citizen, what the state must strive to do for the citizen, and what the citizen owes in return. Articles 12 to 51A.

1 • THE THREE COMPARED

POINT	FUNDAMENTAL RIGHTS	DIRECTIVE PRINCIPLES	FUNDAMENTAL DUTIES
Location	Part III, Articles 12–35	Part IV, Articles 36–51	Part IV-A, Article 51A
Origin	United States Bill of Rights	Irish Constitution	Constitution of the erstwhile USSR
In the original Constitution?	Yes — seven categories, reduced to six	Yes	No — added by the 42nd Amendment, 1976 on the recommendation of the Swaran Singh Committee
Nature	Negative — they restrain the state	Positive — they require the state to act	Positive and negative — obligations of the citizen
Justiciable?	Yes. Directly enforceable through the courts under Articles 32 and 226	No. Article 37 declares them non-enforceable by any court	No. No provision for direct enforcement
Whom do they bind?	Primarily the state ; a few operate against private persons as well	The state only	Citizens only
Aim	Political democracy — the liberty of the individual	Social and economic democracy — a welfare state	Discipline and the promotion of a sense of obligation
Available to	Some to citizens only; others to all persons, including foreigners	Not applicable — they are directions to the state	Citizens only , not foreigners
Legal force	A law violating them is void	A law implementing them is not automatically valid , but courts read them in when interpreting	Non-enforceable, but a court may take them into account when testing the reasonableness of a law

THE RELATIONSHIP BETWEEN THE FIRST TWO

Fundamental Rights and Directive Principles are not rivals. Rights secure political freedom; the Directives supply the social and economic conditions that make freedom worth having. Harmony and balance between Fundamental Rights and Directive Principles is a basic feature, and the 42nd Amendment's attempt to give all Directives blanket primacy over Articles 14 and 19 was struck down (*Minerva Mills*, 1980). But the position is not one of complete parity: Article 31C in its unamended form survives, so a law giving effect to the Directives in Article 39(b) or 39(c) alone cannot be voided for inconsistency with Article 14 or Article 19. The Supreme Court confirmed unanimously in *Property Owners Association v State of Maharashtra* (9 judges, 5 November 2024) that unamended Article 31C stands revived; the same bench held 8:1 that not all privately owned property is a 'material resource of the community' under Article 39(b). Directive Principles are further used by courts to determine whether a restriction on a Fundamental Right is **reasonable**.

2 • FUNDAMENTAL RIGHTS

The definitional Articles

Article 12 Defines "**the State**" for Part III — the Government and Parliament of India, the Government and legislature of each state, **all local authorities** (municipalities, panchayats, district boards, improvement trusts) and **all other authorities** (statutory and non-statutory bodies such as public corporations and government companies). The **judiciary is included** when it acts in a non-judicial capacity, such as making rules or appointing staff, but not when discharging judicial functions.

Article 13 Article 13(1): pre-Constitution laws inconsistent with Part III are void 'to the extent of such inconsistency'; 13(2): post-Constitution laws void 'to the extent of the contravention'. Hence severability — only the offending portion falls, not the whole Act; prospectivity — a pre-Constitution law is not void ab initio; eclipse — it is dormant, not dead, and revives if the inconsistency is later removed by amendment. "**Law**" includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage having the force of law. A **constitutional amendment is not "law"** for this purpose, though it remains open to challenge on the basic structure test. This Article is the express foundation of **judicial review**.

7 → 6

CATEGORIES, AFTER THE 44TH AMENDMENT

12-35

ARTICLES IN PART III

15,16,19,29,30

AVAILABLE TO CITIZENS ONLY

The **right to property** was the seventh category. The **44th Amendment, 1978** removed Article 31 and made it a legal right under **Article 300A**.

A • Right to Equality — Articles 14 to 18

Article 14 **Equality before the law** — a British concept, negative in character, meaning the absence of any special privilege and the equal subjection of all to the ordinary law. **Equal protection of the laws** — an American concept, positive in character, meaning like treatment in like circumstances. **Reasonable classification is permitted**; class legislation is not. Exceptions: the President and Governors (Article 361), foreign sovereigns and diplomats, and the privileges of legislators under Articles 105 and 194.

Article 15 Prohibits discrimination on grounds **only of religion, race, caste, sex or place of birth**. Clause (3) permits special provision for **women and children**; clause (4) for **socially and educationally backward classes, SCs and STs**; clause (5), added by the 93rd Amendment, for their admission to educational institutions including private ones whether aided or unaided, but expressly other than the minority educational institutions referred to in Article 30(1); clause (6), added by the 103rd Amendment, for the economically weaker sections, with up to 10 per cent of seats in addition to the existing reservations, and carrying the same express exclusion of minority educational institutions.

Article 16 **Equality of opportunity in public employment**. Exceptions: a **residence** requirement prescribed by Parliament; **reservation for backward classes** not adequately represented (16(4)); **reservation in promotion** for SCs and STs (16(4A), 77th Amendment); **carry-forward of backlog vacancies** (16(4B), 81st Amendment), which are treated as a separate class and are outside the fifty per cent ceiling for that year; offices in a **religious institution** reserved for members of that religion; and **10 per cent for the economically weaker sections** (16(6), 103rd Amendment).

Article 17 **Abolition of untouchability** and the forbidding of its practice in any form. Enforcement is a **criminal offence**. This right is available **against private individuals** as well as the state. Given effect by the **Protection of Civil Rights Act, 1955**.

Article 18 **Abolition of titles**. The state shall confer no title except a **military or academic distinction**. No citizen may accept a title from a foreign state. National awards such as the Bharat Ratna and the Padma awards are **not titles** and may not be used as a prefix or suffix to the recipient's name.

B • Right to Freedom — Articles 19 to 22

FREEDOM UNDER ARTICLE 19 GROUNDS ON WHICH REASONABLE RESTRICTIONS MAY BE IMPOSED

19(1)(a) Speech and expression Sovereignty and integrity of India · security of the state · friendly relations with foreign states · public order · decency or morality · contempt of court · defamation · incitement to an offence

19(1)(b) Assembly — peaceably and without arms Sovereignty and integrity of India · public order, including the maintenance of traffic

19(1)(c) Association or union, including cooperative societies Sovereignty and integrity of India · public order · morality

19(1)(d) Movement throughout the territory of India Interests of the general public · protection of the interests of any Scheduled Tribe

19(1)(e) Residence and settlement in any part of India Interests of the general public · protection of the interests of any Scheduled Tribe

19(1)(g) Profession, occupation, trade or business Interests of the general public. The state may prescribe professional or technical qualifications, and may itself carry on any trade or business to the complete exclusion of citizens

Clause 19(1)(f), the right to acquire, hold and dispose of property, was **omitted by the 44th Amendment, 1978** — which is why the list runs (a) to (e) and then (g).

Article 20 **Protection in respect of conviction for offences** — three guarantees, available to citizens, foreigners and legal persons alike, and **never suspendable, even during an emergency**. **No ex-post-facto law**: no conviction except for the violation of a law in force at the time of the act, and no penalty greater than that prescribed then. **No double jeopardy, but only autrefois convict**: **Article 20(2) protects one already both prosecuted and punished for the same offence. A fresh trial after an acquittal is not barred by it, and the bar applies only to proceedings before a court or judicial tribunal, not departmental ones.** **No self-incrimination**: no person accused of an offence shall be compelled to be a witness against himself.

Article 21 **No person shall be deprived of his life or personal liberty except according to procedure established by law.** The procedure must itself be **fair, just and reasonable**, not arbitrary. Rights read into Article 21 include the right to live with human dignity, to livelihood, to a clean environment, to health, to shelter, to privacy, to a speedy trial, to free legal aid, against solitary confinement, against handcuffing, against custodial torture, and to information.

Article 21A **Free and compulsory education** for all children of **six to fourteen** years. Added by the **86th Amendment, 2002**; given effect by the Right to Education Act, 2009.

Article 22 **Protection against arrest and detention.** Under ordinary law an arrested person has the right to be **informed of the grounds** of arrest, to **consult and be defended by a legal practitioner**, and to be **produced before a magistrate within twenty-four hours**, excluding the time of journey. These do not apply to an **enemy alien** or to a person detained under a **preventive detention** law. Under preventive detention: detention beyond **three months** requires the opinion of an **advisory board** of persons qualified to be High Court judges; the detenu must be informed of the grounds, except facts the authority considers against the public interest, and must be afforded the earliest opportunity to make a representation.

C · Right against Exploitation — Articles 23 and 24

Article 23 Prohibits **traffic in human beings, begar and other similar forms of forced labour**. Available **against private persons** as well as the state. The state may impose **compulsory service for public purposes** — such as conscription or community service — provided it makes no discrimination on grounds only of religion, race, caste or class.

Article 24 Prohibits the employment of **children below fourteen** in any factory, mine or other **hazardous** employment. Article 24 bars employment below 14 only in a factory, mine or other hazardous work. The Child and Adolescent Labour (Prohibition and Regulation) Act, 1986, as amended in 2016, bans it in all occupations, excepting only family enterprises and audio-visual entertainment; adolescents 14 to 18 are barred from hazardous work.

D · Right to Freedom of Religion — Articles 25 to 28

Article 25 **Freedom of conscience** and the right freely to **profess, practise and propagate** religion, subject to public order, morality, health and the other provisions of Part III. The state may regulate any **economic, financial, political or other secular activity** associated with religious practice, provide for social welfare and reform, and throw open Hindu religious institutions to all classes. Wearing and carrying of kirpans is deemed included in the profession of the Sikh religion.

Article 26 Subject to public order, morality and health, every religious denomination or any section thereof may establish and maintain institutions for religious and charitable purposes, manage its own affairs in matters of religion, own and acquire property, and administer such property in accordance with law. Article 25 is additionally subject to the other provisions of Part III; Article 26 is not.

Article 27 No person shall be **compelled to pay any tax** the proceeds of which are specifically appropriated for the promotion or maintenance of any particular religion. A **fee** may be levied, since it is a payment for services rendered.

Article 28 **No religious instruction** in an educational institution **wholly maintained out of state funds**. It is permitted in an institution **administered by the state but established under an endowment or trust** requiring it. In a state-recognised or state-aided institution, attendance requires the **consent** of the person, or of the guardian if a minor.

E · Cultural and Educational Rights — Articles 29 and 30

Article 29 Any **section of citizens** with a distinct language, script or culture has the right to **conserve** it. No citizen shall be denied admission to a state-maintained or state-aided institution on grounds only of religion, race, caste or language. The first limb protects both religious and linguistic minorities — and, on its terms, any section of citizens.

Article 30 All **minorities, whether religious or linguistic**, have the right to **establish and administer** educational institutions of their choice. Compensation must be paid if such property is compulsorily acquired. The state may not discriminate against a minority institution when granting aid.

F · Right to Constitutional Remedies — Article 32

- The right to **move the Supreme Court** by appropriate proceedings for the enforcement of Fundamental Rights is **itself a Fundamental Right** — described by Dr. Ambedkar as the **heart and soul of the Constitution**.
- The Supreme Court is empowered to issue **directions, orders and writs**. Parliament may empower any other court to issue them.
- The right may be **suspended only as provided by the Constitution** — that is, by a presidential order during a National Emergency, and never in respect of Articles 20 and 21.

WRIT	MEANING AND PURPOSE	ISSUED AGAINST	NOT AVAILABLE WHERE
Habeas corpus	"To have the body." Directs the release of a person unlawfully detained	Both public authorities and private individuals	The detention is lawful, or is by a competent court, or is for contempt of a legislature or court, or is outside the court's jurisdiction
Mandamus	"We command." Directs a public authority to perform a public duty it has failed to perform	A public official, a public body, a corporation, an inferior court, a tribunal or a government	Against a private individual or body; to enforce a departmental instruction without statutory force; where the duty is discretionary rather than mandatory; to enforce a contractual obligation; against the President or a Governor; against the Chief Justice of a High Court acting judicially
Prohibition	"To forbid." Issued by a higher court to a lower court or tribunal to prevent it exceeding its jurisdiction	Judicial and quasi-judicial authorities only	Against administrative authorities, legislative bodies or private individuals
Certiorari	"To be certified." Issued by a higher court to transfer a pending case to itself or to	Judicial and quasi-judicial authorities, and since 1991 also administrative authorities	Against legislative bodies or private individuals. Unlike prohibition, it is both preventive and curative

	quash an order already passed	affecting the rights of individuals	
Quo warranto	"By what authority." Enquires into the legality of a person's claim to a public office	A substantive public office of a permanent character created by the Constitution or by statute	Against a ministerial or private office. Notably, any interested person may seek it — the applicant need not be an aggrieved party

ARTICLE 32 AND ARTICLE 226 DISTINGUISHED

- Article 32 is **itself a Fundamental Right**; Article 226 is a **constitutional right** of the High Courts, not a Fundamental Right.
- Article 32 lies **only for the enforcement of Fundamental Rights**. Article 226 lies for Fundamental Rights **and for any other legal right** — its scope is **wider**.
- The Supreme Court **cannot refuse** relief under Article 32, since it is enforcing a right. A High Court's power under Article 226 is **discretionary**.
- An order under Article 359 suspends the right to move ANY court — the High Courts under Article 226 as much as the Supreme Court under Article 32 — to enforce the Fundamental Rights specified in it, and never Articles 20 and 21. Article 226 survives for ordinary legal rights.
- The territorial reach of the Supreme Court is the whole of India; a High Court issues writs within its own jurisdiction, or beyond it where the cause of action arises within it.

G • Articles 33 to 35

Article 33 **Parliament alone** may restrict or abrogate the Fundamental Rights of members of the **armed forces, paramilitary forces, police forces, intelligence agencies and analogous services**, to ensure the proper discharge of their duties.

Article 34 Restriction on Fundamental Rights while **martial law** is in force in any area. Parliament may **indemnify** a government servant for acts done to maintain or restore order. Martial law is nowhere defined in the Constitution and is distinct from a National Emergency.

Article 35 **Parliament, and not the state legislatures**, has the power to make laws giving effect to certain Fundamental Rights — ensuring uniformity throughout the country.

3 · DIRECTIVE PRINCIPLES OF STATE POLICY

Article 36 Defines "the State" as it is defined in Part III.

Article 37 The Directives are **not enforceable by any court**, but are nevertheless **fundamental in the governance of the country**, and it is the duty of the state to apply them in making laws.

THE THREE-FOLD CLASSIFICATION

The Constitution itself contains **no classification** of the Directives. The three-fold division below is analytical, based on the content and ideological source of each Directive, and is the standard way of organising them.

A · Socialistic Directives — a welfare state and social justice

Article 38 Promote the welfare of the people by securing a social order permeated by justice; **minimise inequalities** in income, status, facilities and opportunities — the second clause was added by the **44th Amendment, 1978**.

Article 39 Secure adequate **means of livelihood** for all; equitable **distribution of material resources**; prevent **concentration of wealth**; **equal pay for equal work** for men and women; protect the health and strength of workers and the tender age of children; give children opportunities to develop in a healthy manner.

Article 39A **Equal justice and free legal aid** — added by the **42nd Amendment, 1976**.

Article 41 Right to **work, education and public assistance** in cases of unemployment, old age, sickness and disablement.

Article 42 **Just and humane conditions of work** and **maternity relief**.

Article 43 **Living wage**, a decent standard of life and social and cultural opportunities for all workers.

Article 43A **Participation of workers in the management** of industries — added by the **42nd Amendment, 1976**.

Article 47 Raise the level of **nutrition and the standard of living** and improve **public health**.

B · Gandhian Directives — the programme of the national movement

Article 40 Organise **village panchayats** and endow them with the powers of units of self-government.

Article 43 Promote **cottage industries** on an individual or cooperative basis in rural areas.

Article 43B Promote the voluntary formation, autonomous functioning, democratic control and professional management of **cooperative societies** — added by the **97th Amendment, 2011**.

Article 46 Promote the educational and economic interests of **SCs, STs and other weaker sections**, and protect them from social injustice and exploitation.

Article 47 Prohibit the consumption of **intoxicating drinks and drugs** injurious to health.

Article 48 Prohibit the slaughter of **cows, calves and other milch and draught cattle** and improve their breeds.

C · Liberal-Intellectual Directives

Article 44 Secure a **uniform civil code** for all citizens.

Article 45 Provide **early childhood care and education** for all children until they complete **six** years. Originally this Article directed free and compulsory education up to fourteen years; it was **recast by the 86th Amendment, 2002**, which shifted that obligation into Article 21A as a Fundamental Right.

Article 48 Organise **agriculture and animal husbandry** on modern and scientific lines.

Article 48A **Protect and improve the environment** and safeguard forests and wildlife — added by the **42nd Amendment, 1976**.

Article 49 Protect **monuments, places and objects** of artistic or historic interest.

Article 50 **Separate the judiciary from the executive** in the public services of the state.

Article 51 Promote **international peace and security**, maintain just and honourable relations between nations, foster respect for international law and treaty obligations, and encourage settlement of international disputes by **arbitration**.

DIRECTIVES ADDED BY AMENDMENT — THE FOUR TO HOLD

42nd Amendment, 1976 — Article 39A (equal justice and free legal aid), Article 43A (workers' participation in management), Article 48A (environment, forests and wildlife).

44th Amendment, 1978 — Article 38(2), minimising inequalities in income and status.

86th Amendment, 2002 — Article 45 recast to early childhood care and education below six years.

97th Amendment, 2011 — Article 43B, promotion of cooperative societies.

DIRECTIVES FOUND OUTSIDE PART IV

- **Article 335** — the claims of Scheduled Castes and Scheduled Tribes to services and posts shall be taken into consideration, consistently with the maintenance of efficiency of administration.
- **Article 350A** — adequate facilities for instruction in the **mother tongue** at the primary stage to children of linguistic minority groups.
- **Article 351** — promotion and development of the **Hindi language**.

These are directives in substance, are non-justiciable in the same way, but are not part of Part IV.

4 • FUNDAMENTAL DUTIES

- Added by the **42nd Amendment, 1976** on the recommendation of the **Swaran Singh Committee**, which had suggested eight duties; **ten** were incorporated as Article 51A.
- The **eleventh duty** was added by the **86th Amendment, 2002**.
- They apply to citizens only, not to foreigners, and are non-justiciable — Article 51A carries no penalty and the Constitution provides no mechanism for their direct enforcement by courts. Parliament may enforce them by ordinary law, and several statutes do.
- Some duties are **moral** in character — such as cherishing the ideals of the freedom struggle — while others are **civic**, such as respecting the National Flag.
- The Swaran Singh Committee had additionally recommended a penalty for non-compliance and a bar on questioning any such penalty in the courts; **neither was accepted**. It had also recommended a duty to pay taxes, which was **not included**.

The eleven duties under Article 51A — it shall be the duty of every citizen

- | | |
|------------|--|
| (a) | To abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem |
| (b) | To cherish and follow the noble ideals that inspired the national struggle for freedom |
| (c) | To uphold and protect the sovereignty, unity and integrity of India |
| (d) | To defend the country and render national service when called upon |
| (e) | To promote harmony and the spirit of common brotherhood among all the people of India transcending religious, linguistic and regional or sectional diversities, and to renounce practices derogatory to the dignity of women |
| (f) | To value and preserve the rich heritage of the country's composite culture |
| (g) | To protect and improve the natural environment , including forests, lakes, rivers and wildlife, and to have compassion for living creatures |
| (h) | To develop the scientific temper , humanism and the spirit of inquiry and reform |
| (i) | To safeguard public property and to abjure violence |
| (j) | To strive towards excellence in all spheres of individual and collective activity |
| (k) | To provide opportunities for education to one's child or ward between the ages of six and fourteen — added by the 86th Amendment, 2002 |

POINTS ON WHICH THE CURRENT POSITION DIFFERS FROM THE OLDER ONE

- The **right to property** is no longer a Fundamental Right. Since the 44th Amendment, 1978 it is a **legal right under Article 300A** — a person may still be deprived of property only by authority of law, but not through Article 32.
- The **right to form cooperative societies** under Article 19(1)(c) and the Directive for their promotion under Article 43B both stand. The separate constitutional Part dealing with cooperative societies was held inoperative for societies confined within a single state, for want of ratification by the states, and survives only for multi-state societies.
- The Directive in **Article 45** no longer concerns elementary education for children up to fourteen — that obligation moved to Article 21A in 2002, and Article 45 now covers early childhood care below six.